

COURT ONLINE COVER PAGE

IN THE LABOUR COURT OF SOUTH
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-077546**

In the matter between:

Wilbur William Matthee

Plaintiff / Applicant

and

**Afrocentric Health (RF) (PTY)
LTD, Medscheme Holdings (PTY)
LTD, Afrocentric Investment Corporation
Limited**

Defendant / Respondent

Notice of Motion (Long Form)

NOTE: This document was filed electronically by the Registrar on 2/4/2026 at 8:36:26 AM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,
Cape Town**

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN

CASE NO: _____

In the matter between:

WILBUR WILLIAM MATTHEE

Applicant

and

AFROCENTRIC HEALTH (RF) (PTY) LTD

(Contracting Employer — signatory to the Applicant's employment contract)

First Respondent

and

MEDSCHEME HOLDINGS (PTY) LTD

(Registration Number: 1983/003221/07)

(Operational entity and payroll administrator)

Second Respondent

and

AFROCENTRIC INVESTMENT CORPORATION LIMITED

(Registration Number: 1988/000570/06)

(JSE: ACT) — Ultimate holding company and group employer

Third Respondent



NOTICE OF MOTION

(APPLICATION FOR REPAYMENT OF UNLAWFULLY RECOVERED REMUNERATION)

BCEA S34(1) AND S34(2) — IN TERMS OF S77A OF THE BCEA

TAKE NOTICE THAT the Applicant intends to make application to this Honourable Court, on a date and time to be allocated by the Registrar, for an order in the following terms:

1. DECLARATORY RELIEF

1.1 DECLARING that the recovery of R14,811.77 processed against the Applicant's remuneration on 23 July 2025 — coded as 'Unpaid Leave Recovery' (R13,824.32) and 'Unpaid Leave' (R987.45) — constitutes a deduction from remuneration within the

meaning of Section 34(1) of the Basic Conditions of Employment Act 75 of 1997 ('BCEA').

1.2 DECLARING that the said deduction was made without the Applicant's prior written consent and without authorisation by any court order, arbitration award, collective agreement, or law, and is therefore unlawful.

1.3 DECLARING that the deduction exceeded 25% of the Applicant's gross remuneration in a single pay cycle, in further breach of Section 34(2) of the BCEA and the Respondents' own HCBP Policy.

2. PAYMENT ORDER

2.1 ORDERING the First, Second, and Third Respondents, jointly and severally, the one paying the others to be absolved, to repay the Applicant the sum of R14,811.77 (Fourteen Thousand Eight Hundred and Eleven Rand and Seventy-Seven Cents) within 7 (seven) days of the date of this Order.



2.2 — SOLATIUM: ORDERING the First, Second, and Third Respondents, jointly and severally, the one paying the others to be absolved, to pay the Applicant the sum of R50,000.00 (Fifty Thousand Rand) as solatium for injury to dignity, psychological harm, and distress directly caused by the unlawful deduction and the Respondents' bad faith conduct, having regard to: (i) the magnitude of the breach (40.47% — nearly double the statutory cap); (ii) the Applicant's documented psychiatric disability known to the Respondents at the time of the deduction; (iii) the financial devastation caused (forced retirement fund withdrawal, eviction notices, destitution, SANC deregistration, and loss of career advancement); (iv) the failure to consult despite the Respondents' own HCBP Policy; (v) the written misrepresentation regarding salary staggering; (vi) the false sworn statement dismissing severe mental illness as an "excuse"; and (vii) the post-resignation statutory breaches demonstrating ongoing institutional bad faith;

3. INTEREST

3.1 INTEREST: ORDERING the Respondents jointly and severally to pay interest on the sums awarded under paragraphs 2.1 and 2.2 above (totalling R64,811.77) at the prescribed legal rate calculated from 23 July 2025 to the date of final payment;

4. COSTS

4.1 ORDERING the Respondents jointly and severally to pay the costs of this application on a punitive scale, having regard to:

- (a) The deliberate misrepresentation by the Second Respondent's manager that the group does not permit staggered debt recovery, when the Respondents' own Ill-Health and Incapacity Policy expressly requires prior HCBP consultation and staggered arrangements;
- (b) The Respondents' HCBP failure to consult with the Applicant before making the deduction, in breach of their own Policy;
- (c) The Respondents' prior written notice from the Applicant's treating specialist psychiatrist, Dr Jacques Malan (FCPSYCH(SA)), that the Applicant was at risk and

required urgent re-admission — notice which the Respondents held before making the deduction and ignored entirely; and

(d) The institutional bad faith demonstrated by the Respondents' group HR representative in sworn proceedings before the CCMA, in which the Applicant's specialist-diagnosed psychiatric disability was characterised as a cynical excuse.

5. RESERVATION OF RIGHTS

5.1 DIRECTING that the relief granted herein is without prejudice to the Applicant's rights to pursue further relief against all three Respondents, including constructive dismissal, unfair labour practice, class action, Employment Equity Act disability discrimination claims, and all further claims under separate proceedings.



6. FURTHER AND/OR ALTERNATIVE RELIEF

TAKE NOTICE FURTHER that the Founding Affidavit of WILBUR WILLIAM MATTHEE, annexed hereto together with Annexures A to H, will be used in support of this application.

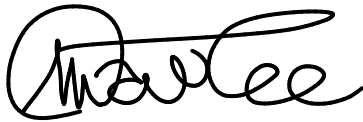
The Founding Affidavit and annexures establish the following core facts:

- (a) The Applicant's signed employment contract is with the First Respondent (Annexure G);
- (b) The unlawful deduction of R14,811.77 was processed by the Second Respondent on 23 July 2025 without written consent (Annexure A — payslip);
- (c) The deduction exceeded the 25% statutory and policy cap (Annexure A and Annexure B — HCBP Policy);
- (d) The Respondents' manager misrepresented the staggering policy in writing (Annexure C);
- (e) No consultation was conducted despite the Applicant's request and the employer's own policy obligation;
- (f) The Third Respondent directly exercised employer functions over the Applicant (Annexures E and F);
- (g) The employer had prior written notice from a specialist psychiatrist of the Applicant's condition and vulnerability before making the deduction (Annexure H); and
- (h) The Respondents' group HR representative made a sworn statement in CCMA proceedings dismissing the Applicant's specialist-diagnosed psychiatric condition, without any medical qualifications to do so.

TAKE NOTICE FURTHER that if any Respondent intends to oppose this application, it must:

- (a) Deliver a Notice of Intention to Oppose within 10 (ten) days of receipt of this Notice;
- (b) Deliver an Answering Affidavit within 15 (fifteen) days thereafter; and
- (c) Appoint an address within 15 kilometres of the office of the Registrar of this Court at which it will accept notice and service of all documents in these proceedings.

DATED at CAPE TOWN on this 5th day of MARCH 2026.



WILBUR WILLIAM MATTHEE

Applicant in Person

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TO:

THE REGISTRAR OF THE LABOUR COURT

Cape Town

AND TO:

AFROCENTRIC HEALTH (RF) (PTY) LTD

First Respondent

37 Conrad Street, Florida Glen, Roodepoort, 1709

(Per Hand / Email)

AND TO:

MEDSCHEME HOLDINGS (PTY) LTD

Second Respondent

The Boulevard Office Park, Corner Searle and Pontac Streets

Woodstock, Cape Town, 7925

(Per Hand / Email)

AND TO:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Third Respondent

37 Conrad Street, Florida Glen, Roodepoort, 1709

Attention: LSM Mpumlwana (Group Company Secretary)

(Per Hand / Email)

